

Demand and citation quashed for breach of clause 6.8(b) hearing procedure

High Court of Judicature at Allahabad · Division Bench · 20 February 2018 · WRIT - C No. 6064 of 2018 · **Writ allowed; citation and demand notice quashed with liberty to re-proceed.**

HEADNOTE

A demand notice for ₹10,20,304 and the ensuing recovery citation were quashed where the provisional assessment notice did not disclose the basis of the assessment, the consumer's objections were not decided, and no final assessment order was passed. Applying *Ashok Kumar*, a provisional notice must invite objections and indicate a date and time for hearing. The procedure was de hors the U.P. Electricity Supply Code, 2005 and in gross violation of clause 6.8(b). Liberty was reserved to proceed afresh in accordance with law.

FACTUAL SUMMARY

Javed Malik of NOIDA challenged a 1 December 2017 demand notice for ₹10,20,304 and a 20 January 2018 recovery citation issued by Pashchimanchal Vidyut Vitran Nigam Limited. He had objected to a provisional assessment before the Executive Engineer, Nagriya Vidyut Vitran Khand-5. The demand issued without deciding those objections or making a final assessment; the provisional notice also omitted the basis of the figure. The demand ran against him and his late mother. He invoked section 126(3) of the Electricity Act, 2003.

REUSABLE CONSTRUCTIONS

1. A provisional assessment notice must invite objections and indicate a date and time for hearing the consumer; a demand founded on a notice that omits the basis of assessment and skips that hearing procedure is de hors clause 6.8(b) of the U.P. Electricity Supply Code, 2005. ¶ 1
2. A demand notice and recovery citation cannot stand where objections to the provisional assessment remain undecided and no final order of assessment has been passed. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional assessment notice — objections and hearing

HOLDING

The provisional assessment notice did not disclose the basis on which the consumer was assessed at ₹10,20,304. Applying *Ashok Kumar*, an essential requirement of the U.P. Electricity Supply Code, 2005 for assessment in a theft case is that the provisional notice invite objections and indicate a date and time for hearing. A demand issued without that procedure, without deciding objections already filed, and without a final assessment, is de hors the Code and in gross violation of clause 6.8(b), and cannot be sustained against the consumer or his late mother. The citation dated 20.01.2018 and demand notice dated 01.12.2017 were quashed, with liberty to proceed in accordance with the prescribed procedure. ¶ 1

FLAG Court framed the Code procedure by reference to theft assessment (*Ashok Kumar*) while striking the demand under cl. 6.8(b).

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008 (6) ADJ 660 (DB)			1	Referred

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.